

Title 33 STATE BOARD OF ELECTIONS
Subtitle 07 ELECTION DAY ACTIVITIES
Chapter 07 Challengers and Watchers

Authority: Election Law Article §§2-102(b)(4), 2-202(b), 10-303 and 10-311, Annotated Code of Maryland

.01 Designating Entities.

A. State Board as Designating Entity. The State Board may:

- (1) Designate [an individual as] *an accredited challenger or watcher* if [the individual submits] a written request that includes polling places in more than one county *is submitted*; and
- (2) Require [the individual to attend] *attending* a training session, [read] *reading* any State Board issued information, or both.

B. Local Board as Designating Entity. A local board may:

- (1) Designate [an individual as] *an accredited challenger or watcher* if [the individual submits] a written request that includes polling places in its jurisdiction *is submitted*; and
- (2) Require [the individual to attend] *attending* a training session, [read] *reading* any State Board issued information, or both.

C. Other Designating Entities.

(1) [If a] A designating entity other than the State Board or a local board *may designate an accredited challenger and watcher and if it* intends to distribute instructions to the [individual or individuals it designates] *designated accredited challenger and watcher*, the designating entity:

[(1)] (a) May not provide information that conflicts with the Election Law Article, Annotated Code of Maryland, Title 33 of COMAR, and other State Board issued information; and

[(2)] (b) May submit a written draft of the instructions to the State Board for review.

(2) *If a designating entity is a group of voters supporting or opposing a candidate, principle, or proposition on the ballot that may designate challengers and watchers, that group of voters shall be a political action committee or a person who is required to file a disclosure under Election Law Article §13-306 or 13-307, Annotated Code of Maryland.*

D. Certificate.

(1) A designating entity shall provide each *designated accredited* challenger or watcher [it designates] with a signed certificate, in the form prescribed by the State Board.

(2) The certificate shall be signed by:

- (a) If a candidate is the designating entity, the candidate;
 - (b) If a political party is the designating entity, [an] *a responsible* officer, executive director of the entity, or other person authorized to sign on behalf of the entity;
- [or]

(c) If a group of voters is the designating entity, the chairman or treasurer of the political committee[.]

(d) *If the group of voters is the designating entity, the Treasurer of an independent expenditure entity as defined in COMAR 33.20.01.01,*

(3) The signature of the designating entity shall be:

- (a) An original signature; or
- (b) A copy of an original signature.

(4) *Except as provided in paragraph E,* A designated entity shall provide the local board with:

- (a) Copies of completed certificates; or

(b) A list of [individuals] designated *accredited* [as] challengers and watchers.

E. Substitutions

(1) *A designating entity may substitute names of accredited challengers and watchers up to and including on election day only after making a submission to the local election director in paragraph D.*

(2) *The designating entity shall notify the local election director of the substitution in writing prior to the substitution.*

.02 Permissive Activities of Accredited Challengers or Watchers.

A. In General. An accredited challenger or watcher may perform the activities defined in Election Law Article, §10-311(b), Annotated Code of Maryland.

B. Before Voting.

(1) Except as provided in §B(2) of this regulation, before voting begins on *each day of early voting or election day*, an accredited challenger or watcher may observe the election judges setting up the voting room, including:

(a) Observing the election judges print voting system reports and review these reports;

(b) [Verifying] *Observing* the number of voters who have been checked-in and the number of votes that have been cast; and

(c) [Verifying] *Observing* that required security seals have been applied on the voting system.

(2) An election judge shall not permit an accredited challenger or watcher entry to the *early voting center or* polling place during the 30 minutes immediately before the opening of the polls.

C. During Voting Hours.

(1) (a) The Chief Judges shall determine the location of accredited challengers or watchers in the voting room.

(b) When determining the location of the accredited challengers and watchers in the voting room, the Chief Judges shall ensure:

(i) The accredited challenger or watcher may see and hear each person as the person offers to vote; and

(ii) The efficient management of the voting room.

(c) The Chief Judges are not required to locate the accredited challengers and watchers directly behind the check-in table or in a position where they can directly view the electronic pollbook.

(2) During voting hours, an accredited challenger or watcher [shall] *may, when accompanied by a Chief Judge and at a convenient time for the election judges, observe:*

(a) [Verify the] *The* security seals on voting units to which voters have not been assigned; and

(b) [Verify the] *The* number of voters who have been checked in to vote.

D. After Voting.

(1) To observe the post-voting hours procedures, an accredited challenger or watcher shall be in the polling place before voting hours end.

(2) During this time, an accredited challenger or watcher may *observe:*

(a) [Observe the] *The* election judges print voting system reports and review these reports; *and*

(b) [Verify that] *That* required security seals have been applied on the voting system.; *and*

[(c) Observe the transmission by modem of election results if the local board has instructed the Chief Judges to perform this task.]

.03 Prohibited Acts of Challengers or Watchers.

A. Prohibited Acts. A challenger or watcher may not:

(1) (text unchanged)

(2) Bring into a polling place any device listed in COMAR 33.07.04.02, [or] political materials, *or campaign materials*[, newspapers, or news magazines];

(3)-(7) (text unchanged)

B. (text unchanged)

Explanation: These regulation revisions provide clarification and specify who can sign certificates on behalf of a central committee and how to submit documentation for substitutions. Additionally, the revisions seek to provide clearer wording for the permissive and prohibited activities and remove the text that describes the transmission by modem of election results as we no longer transmit results by modem at the polling places. Finally, they define a group of registered voters who may be challengers and watchers.